

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/14/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0001341

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK: G. STRATFORD

PLAINTIFF: MINNIE ROSE MCBRIDE	
vs.	
DEFENDANT: WILLIAM MONTI ET AL.	

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Defendant/Cross-Complainant Michael Monti’s (“Defendant”) Motion for Summary Adjudication in favor of Defendant and against Plaintiff/Cross-Defendant Minnie McBride (“Plaintiff”) is **DENIED**.

Background

This dispute concerns real property and improvements commonly known as and located at 55 Buena Vista Ave., Stinson Beach, California (“the Property”). Plaintiff alleges she and Defendant are co-owners of the Property. On November 13, 2023, Plaintiff filed suit for partition, accounting, and breach of fiduciary duty. On November 9, 2025, Plaintiff filed a Second Amended Complaint, adding a quiet title cause of action. The quiet title cause of action has been bifurcated and is separately set and now pending trial on August 4, 2026.

Presently before the Court is Defendant’s Motion for Summary Adjudication on the quiet title cause of action. In its April 17, 2026, Order, this Court found good cause to hear the Motion less than 30 days prior to the commencement of trial.

Requests for Judicial Notice

Defendant’s Requests for Judicial Notice Nos. 2-4 are GRANTED. (Evid. Code, §§ 452(c), 452(h), 453.) The document submitted in Request No. 1 is not a file endorsed copy of the pleading, therefore notice is not properly taken and the Request is DENIED. As to the documents contained in Requests Nos. 2-4, the Court takes notice of the existence documents, the fact that they were filed/recorded etc., but not the truth of statements contained therein.

Plaintiff's Requests for Judicial Notice Nos. 3-7 are GRANTED. (Evid. Code, § 452(d).) The Court takes notice of the existence documents, the fact that they were filed/recorded etc., but not the truth of statements contained therein. The remaining Requests are DENIED.

Objections to Evidence

Plaintiff's Objections to Evidence Nos. 1-14 are OVERRULED.¹

Defendant's Objections to Evidence (Requests for Judicial Notice) Nos. 1-6 are OVERRULED.

Defendant's Objections to Evidence (Holsinger Decl.) No. 1 is OVERRULED.²

Defendant's Objections to Evidence (McBride Decl.) Nos. 1, 6, 7, and 8 are OVERRULED.

Objections Nos. 2-5 are SUSTAINED. (Evid. Code, §§ 350, 403, 702, 800, 1523.)

Objections to Evidence (Wulf Decl.) Nos. 1-3 and 5-6 are OVERRULED. Objection No. 4 is SUSTAINED. (Evid. Code, §§ 1200, 1201.)

Objections to Evidence (Fisher Decl.) Nos. 1-5 are OVERRULED.

Legal Standard

A party may move for summary judgment "if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).) "[I]f all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law," the moving party will be entitled to summary judgment. (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims of damages, or one or more issues of duty. (Code Civ. Proc., § 437c(f).) A summary adjudication motion is subject to the same rules and procedures as a summary judgment motion. (*Lomes v. Hartford Financial Service Group, Inc.* (2001) 88 Cal.App.4th 127, 131.)

The moving party bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact, and if the party does so, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact.

¹ Defendant is correct that Plaintiff's objections violate California Rules of Court, rule 3.1354(c). Notwithstanding this failure to comply, the Court considers the objections as Defendant has had an opportunity to respond.

² In the future, the Court requests counsel consecutively number objections without restarting for ease of reference.

(*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; accord Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant ... has met that burden, the burden shifts to the plaintiff... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (*Ibid.*) “If the plaintiff cannot do so, summary judgment should be granted.” (*Avivi v. Centro Medico Urgente Med. Ctr.* (2008) 159 Cal.App.4th 463, 467, as modified (Jan. 24, 2008).)

When deciding whether to grant summary judgment, the court must consider all the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment. (*Ibid.*; see also Code Civ. Proc., § 437c, subd. (c).)

Discussion

Defendant brings this Motion pursuant to Code of Civil Procedure section 437(c) arguing that he is entitled to summary adjudication on the cause of action for quiet title in the Second Amended Complaint (“SAC”). Specifically, Defendant argues there is no triable issue as to any material fact regarding the termination of joint tenancy.

Plaintiff contends that she “has acceded to the interest of defendant William Monti in and to the Property by virtue of the joint tenancy in effect at the time of his death.” (SAC, ¶ 28.) Defendant counters that on August 11, 2023, the joint tenancy was severed as to Decedent’s interest by his authorized agent under a Power of Attorney (the “Severance Deed”).

Defendant contends the undisputed material facts demonstrate the Severance Deed was properly executed and because the Severance Deed was recorded during the severing joint tenant’s lifetime, it terminated the right of survivorship as a matter of law. (Civ. Code, § 683.2, subd. (c)(1); Defendant’s Undisputed Material Facts (“DUMF”) Nos. 1-12.)

Defendant has satisfied his burden on Summary Adjudication and the burden therefore shifted back to Plaintiff to demonstrate the existence of a triable issue of material fact. Plaintiff has done so. (See Plaintiff’s Response to Defendant’s Separate Statement “PRSS” Nos. 1-6, 8-10.)³

Defendant argues that the “disputes” of material facts raised by Plaintiff go beyond those theories raised in the SAC. Plaintiff’s SAC alleges that the “purported termination of joint tenancy by or on behalf of defendant William Monti was defective in that (a) there was no notarization of the signature of defendant William Monti and (b) there was no power of attorney

³ Although the PRSS does not specifically list “Disputed” or “Undisputed” as required (see California Rules of Court, rule 3.1350), the facts in dispute are clear from Plaintiff’s response.

attached to the document.” (SAC, ¶ 23.) Plaintiff’s opposition disputes Defendant’s material facts in connection with the validity of the DPOA and the validity of the signature and notarization on of the Severance Deed. (PRSS Nos. 1-6, 8-10.) Factual issues presented in opposition to a motion for summary judgment should be considered if the controlling pleading, construed broadly, encompasses them. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1257, as modified on denial of reh'g (July 7, 2008).) The SAC reasonably interpreted as a whole and reading its parts in their context, broadly encompasses these challenges.

For these reasons, the Motion for Summary Adjudication is denied.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court’s website: <https://www.marin.courts.ca.gov>

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